Assignment - 2

1. Describe the rights from patents.

The rights from patents are the exclusive privileges granted to an inventor by the government for a specific period typically 20 years.

The key rights include:

1. Right to exclude others: The inventor can stop others from using or reproducing the invention.

2. Right to license: The inventor can license the patent to others in exchange for royalties.

3. Right to Assign: The patent can be sold or transferred to another person or organization.

4. Right to sue for infringement: If someone uses the invention without permission, the patent holder can take legal action.

5. Right to use Commercially: The inventor

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Can manufacture and market the invention for profit.

2. Write short note on the legal system in India.

The Indian legal system is based on Common Law inherited from British rule. It follows a hierarchial structure and ensures justice, equality, and liberty as per the Constitution of India.

Key features :-

1. Written Constitution - The supreme law guiding all legal frameworks.
2. Hierarchy of Courts - Supreme Court → High Court District Courts and Subordinate.
3. Rule of law : No one is above the law, not even the government.
4. Independent judiciary : The judiciary operates free from political influence.
5. Public interest litigation (PIL): Allow citizens to approach courts for social justice.

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3. Explain court structure in detail.

The Court structure in India is organized in a three-tier system:

1. Supreme Court : The apex court of India. It deals with constitutional, appellate, and advisory jurisdictions.
2. High Courts : Present in each state or group of states. They handle appeals from lower courts and have original jurisdiction in certain matters.
3. Sub-Ordinate Courts : These include District Courts (civil and criminal), Magistrate Courts, Family courts, and others..

They ensures accessibility of justice at all levels and maintains the principle of judicial hierarchy.

4. Describe RTI (Right to Information) Act, 2005.

The Right to Information Act, 2005 empowers citizens to seek information from public authorities to ensure transparency and accountability.

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Key features :

1. Right to Access Information : Citizens can request information from any government office.
2. Obligation of Public Authorities : Departments must maintain and provide records proactively.
3. Public Information Officer (PIO) : Responsible for providing requested data within 30 days.
4. Exemptions : National security and personal privacy - related matters are excluded.
5. Appeal Mechanism : Applicants can appeal if information is denied or delayed.

5. Explain the features of Information Technology (I.T) Act 2000.

The IT Act 2000 was enacted to provide legal recognition to electronic transactions and curb cybercrimes.

The main features are :-

1. Legal recognition to electronic documents and signatures.

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2. Establishments of Cyber Appellate Tribunal.

3. Provisions against Cybercrimes.

4. Recognition of digital signatures for authentication.

5. Empowers government agencies to monitor and investigate cyber activities.

Thank You!

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